

The National Commission For Women Act, 1990

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The National Commission For Women Act, 1990

UNION OF INDIA

India

The National Commission For Women Act, 1990

Act 20 of 1990

Published on 30 August 1990

Commenced on 30 August 1990

[This is the version of this document from 30 August 1990.]

[Note: The original publication document is not available and this content could not be verified.]

The National Commission For Women Act, 1990

(20 of 1990)

Last Updated 30th December, 2019 [17/793]

Statement of Objects and Reasons.-Successive Commissions on Women have noted in their Reports the unequal status of women obtaining in every sphere of life and had suggested the setting up of an agency to fulfil the surveillance functions.as well as to facilitate redressal of grievances of women. Several women activists and voluntary action groups have also been making persistent demands for setting up of a Commission for women. The country cannot progress as long as the inequality persists with reference to half of its population. Having realised the importance of the issue, the Government decided to set up a Commission for women, to be called the National Commission for Women, consisting of a Chairperson and six Members.

2. The main task of the Commission shall be to study and monitor all matters relating to the constitutional and legal

safeguards provided for women, to review the existing legislations and suggest amendments, wherever necessary. It will also look into the complaints and take suo motu notice of the cases involving deprivation of the rights of women in order to provide support, legal or otherwise, to helpless women. The Commission shall monitor the proper implementation of all the legislations made to protect the rights of women so as to enable them to achieve equality in all spheres of life and equal participation in the development of the nation.

3. The Bill seeks to achieve the aforesaid objectives.

[30th August, 1990]

An Act to constitute a National Commission for Women and to provide for matters connected therewith or incidental thereto.

Be it enacted by Parliament in the Forty-first Year of the Republic of India as follows:-

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| Brought into force on 31.1.1992 vide S.O. 99(E), dated 31.1.1992.

}

Chapter I

Preliminary

1.

Short title, extent and commencement .-(1) This Act may be called The National Commission for Women Act, 1990.

(2)

It extends to the whole of India [***].

(3)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2.

Definitions .-In this Act, unless the context otherwise requires,-

(a)

"Commission" means the National Commission for Women constituted under section 3;

(b)

"Member" means a Member of the Commission and includes the Member-Secretary;

(c)

"prescribed" means prescribed by rules made under this Act.

Chapter II

The National Commission For Women

3.

Constitution of the National Commission for Women .-(1) The Central Government shall constitute a body to be known as the National Commission for Women to exercise the powers conferred on, and to perform the functions, assigned to it under this Act.

(2)

The Commission shall consist of-

(a)

a Chairperson, committed to the cause of women, to be nominated by the Central Government;

(b)

five Members to be nominated by the Central Government from amongst persons of ability, integrity and standing who have had experience in law or legislation, trade, unionism, management of an industry or organisation committed to increasing the employment potential of women, women's voluntary organisations (including women activists), administration, economic development, health, education or social welfare:

Provided that at least one Member each shall be from amongst persons belonging to the Scheduled Castes and Scheduled Tribes respectively;

(c)

a Member-Secretary to be nominated by the Central Government, who shall be-

(i)

an expert in the field of management, organisational structure or sociological movement, or

(ii)

an officer who is a member of a civil service of the Union or of an all-India service or holds a civil post under the Union with appropriate experience.

4.

Term of office and conditions of service of Chairperson and Members .-(1) The Chairperson and every Members shall hold office for such period, not exceeding three years, as may be specified by the Central Government in this behalf.

(2)

The Chairperson or a Member (other than the Member-Secretary who is a member of a civil service of the Union or of an all-India service or holds a civil post under the Union) may, by writing and addressed to the Central Government, resign from the office of Chairperson or, as the case may be, of the Member at any time.

(3)

The Central Government shall remove a person from the office of Chairperson or a Member referred to in sub-section (2) is that person-

(a)

becomes an undischarged insolvent;

(b)

gets convicted and sentenced to imprisonment for an offence which in the opinion of the Central Government involves moral turpitude;

(c)

becomes of unsound mind and stands so declared by a competent Court;

(d)

refuses to act or becomes incapable of acting;

(e)

is, without obtaining leave of absence from the Commission, absent from three consecutive meetings of the Commission; or

(f)

in the opinion of the Central Government has so abused the position of Chairperson or Member as to render that person's continuance in office detrimental to the public interest:

Provided that no person shall be removed under this clause until that person has been given a reasonable opportunity of being heard in the matter.

(4)

A vacancy caused under sub-section (2) or otherwise shall be filled by fresh nomination.

(5)

The salaries and allowances payable to, and the other terms and conditions of service of, the Chairperson and Members shall be such as may be prescribed.

5.

Officers and other employees of the Commission .-(1) The Central Government shall provide the Commission with such officers and employees as may be necessary for the efficient performance of the functions of the Commission under this Act.

(2)

The salaries and allowances payable to, and the other terms and conditions of service of, the officers and other employees appointed for the purpose of the Commission shall be such as may be prescribed.

6.

Salaries and allowances to be paid out of grants .-The salaries and allowances payable to the Chairperson and Members and the administrative expenses, including salaries, allowances and pensions payable to the officers and other employees referred to in section 5, shall be paid out of the grants referred to in sub-section (1) of section 11.

7.

Vacancies, etc., not to invalidate proceedings of the Commission .-No act or proceeding of the Commission shall be questioned or shall be invalid on the ground merely of the existence of any vacancy or defect in the constitution of the Commission.

8.

Committees of the Commission .-(1) The Commission may appoint such committees as may be necessary for dealing with such special issues as may be taken up by the Commission from time to time.

(2)

The Commission shall have the power to co-opt as members of any committee appointed under sub-section (1) such number of persons, who are not Members of the Commission, as it may think fit and the persons so co-opted shall have the right to attend the meetings of the committee and take part in its proceedings but shall not have the right to vote.

(3)

The persons so co-opted shall be entitled to receive such allowances for attending the meetings of the Committee as may be prescribed.

9.

Procedure to be regulated by the Commission .-(1) The Commission or a committee thereof shall meet as and when necessary and shall meet at such time and place as the Chairperson may think fit.

(2)

The Commission shall regulate its own procedure and the procedure of the committees thereof.

(3)

All orders and decisions of the Commission shall be authenticated by the Member-Secretary or any other officer of the Commission duly authorised by the Member-Secretary in this behalf.

Chapter III

Functions Of The Commission

10.

Functions of the Commission .-(1) The Commission shall perform all or any of the following functions, namely:-

(a)

investigate and examine all matters relating to the safeguards provided for women under the Constitution and other laws;

(b)

present to the Central Government, annually and at such other times as the Commission may deem fit, reports upon the working of those safeguards;

(c)

make in such reports recommendations for the effective implementation of those safeguards for improving the conditions of women by the Union or any State;

(d)

review, from time to time, the existing provisions of the Constitution and other laws affecting women and recommend amendments thereto so as to suggest remedial legislative measures to meet any lacunae, inadequacies or shortcomings in such legislations;

(e)

take up the cases of violation of the provisions or the Constitution and of other laws relating to women with the appropriate authorities;

(f)

look into complaints and take suo motu notice of matters relating to-

(i)

deprivation of women's rights;

(ii)

non-implementation of laws enacted to provide protection to women and also to achieve the objective of equality and development;

(iii)

non-compliance of policy decisions, guidelines or instructions aimed at mitigating hardships and ensuring welfare and providing relief to women, and take up the issues arising out of such matters with appropriate authorities;

(g)

call for special studies or investigations into specific problems or situations arising out of discrimination and atrocities against women and identify the constraints so as to recommend strategies for their removal;

(h)

undertake promotional and educational research so as to suggest ways of ensuring due representation of women in all spheres and identify factors responsible for impeding their advancement, such as, lack of access to housing and basic services, inadequate support services and technologies for reducing drudgery and occupational health hazards and for increasing their productivity;

(i)
participate and advise on the planning process of socio-economic development of women;

(j)
evaluate the progress of the development of women under the Union and any State;

(k)
inspect or cause to be inspected a jail, remand home, women's institution or other place of custody where women are kept as prisoners or otherwise, and take up with the concerned authorities for remedial action, if found necessary;

(l)
fund litigation involving issues affecting a large body of women;

(m)
make periodical reports to the Government on any matter pertaining to women and in particular various difficulties under which women toil;

(n)
any other matter which may be referred to it by the Central Government.

(2)
The Central Government shall cause all the reports referred to it in clause (b) of sub-section (1) to be laid before each House of Parliament alongwith a memorandum explaining the action taken or proposed to be taken on the recommendations relating to the Union and the reasons for the non-acceptance, if any, of any of such recommendations.

(3)
Where any such report or any part thereof relates to any matter with which any State Government is concerned, the Commission shall forward a copy of such report or part to such State Government who shall cause it to be laid before the Legislature of the State along with a memorandum explaining the action taken or proposed to be taken on the recommendations relating to the State and the reasons for the non-acceptance, if any, of any of such recommendations.

(4)
The Commission shall, while investigating any matter referred to in clause (a) or sub-clause (i) of clause (f) of sub-section (1), have all the powers of a Civil Court trying a suit and, in particular, in respect of the following matters, namely:-

(a)
summoning and enforcing the attendance of any person from any part of India and examining him on oath;

(b)
requiring the discovery and production of any document;

(c)
receiving evidence on affidavits;

(d)
requisitioning any public record or copy thereof from any Court or office;

(e)
issuing commissions for the examination of witnesses and documents; and

(f)
any other matter which may be prescribed.

Chapter IV

Finance, Accounts And Audit

11.

Grants by the Central Government .-(1) The Central Government shall, after due appropriation made by Parliament by law in this behalf, pay to the Commission by way of grants such sums of money as the Central Government may think fit for being utilised for the purposes of this Act.

(2)

The Commission may spend such sums as it thinks fit for performing the functions under this Act, and such sums shall be treated as expenditure payable out of the grants referred to in sub-section (1).

12.

Accounts and audit .-(1) The Commission shall maintain proper accounts and other relevant records and prepare an annual statement of accounts in such form as may be prescribed by the Central Government in consultation with the Comptroller and Auditor-General of India.

(2)

The accounts of the Commission shall be audited by the Comptroller and Auditor-General at such intervals as may be specified by him and any expenditure incurred in connection with such audit shall be payable by the Commission to the Comptroller and Auditor-General.

(3)

The Comptroller and Auditor-General and any person appointed by him in connection with the audit of the accounts of the Commission under this Act shall have the same rights and privileges and the authority in connection with such audit as the Comptroller and Auditor-General generally has in connection with the audit of Government accounts and, in particular, shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect any of the offices of the Commission.

(4)

The accounts of the Commission, as certified by the Comptroller and Auditor-General or any other person appointed by him in this behalf, together with the audit report thereon shall be forwarded annually to the Central Government by the Commission.

13.

Annual report .-The Commission shall prepare, in such form and at such time, for each financial year, as may be prescribed, its annual report, giving a full account of its activities during the previous financial year and forward a copy thereof to the Central Government.

14.

Annual report and audit report to be laid before Parliament .-The Central Government shall cause the annual report together with a memorandum of action taken on the recommendations contained therein, in so far as they relate to the Central Government, and the reasons for the non-acceptance, if any, of any of such recommendations and the audit report to be laid as soon as may be after the reports are received, before each House of Parliament.

Chapter V

Miscellaneous

15.

Chairperson, Members and staff of the Commission to be public servants .-The Chairperson, the Members, officers and other employees of the Commission shall be deemed to be public servants within the meaning of section 21 of the Indian Penal Code (45 of 1860).

16.

Central Government to consult Commission .-The Central Government shall consult the Commission on all major policy matters affecting women.

17.

Power to make rules .-(1) The Central Government may, by notification in the Official Gazette, make rules for carrying out the provisions of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:-

(a)

salaries and allowances payable to, and the other terms and conditions of service of, the Chairperson and Members under sub-section (5) of section 4 and of officers and other employees under sub-section (2) of section 5;

(b)

allowances for attending the meetings of the committee by the co-opted persons under sub-section (3) of section 8;

(c)

other matters under clause (f) of such-section (4) of section 10;

(d)

the form in which the annual statement of accounts shall be maintained under sub-section (1) of section 12;

(e)

the form in, and the time at which the annual report shall be prepared under section 13;

(f)

any other matter which is required to be, or may be, prescribed.

(3)

Every rule made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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